

STATE OF NEW YORK

1982--A

Cal. No. 1607

2025-2026 Regular Sessions

IN SENATE

January 14, 2025

Introduced by Sens. HARCKHAM, ASHBY, JACKSON, O'MARA, ROLISON, STEC, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged and said bill committed to the Committee on Rules -- reported favorably from said committee, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the general municipal law and the executive law, in relation to the completion of training requirements for sheriffs and undersheriffs

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (a) of subdivision 1 of section 209-q of the
2 general municipal law, as amended by chapter 735 of the laws of 1988, is
3 amended to read as follows:
4 (a) Notwithstanding the provisions of any general, special or local
5 law or charter to the contrary, no person shall, after July first, nine-
6 teen hundred sixty, receive an original appointment on a permanent basis
7 as a police officer of any county, city, town, village or police
8 district unless such person has previously been awarded a certificate by
9 the executive director of the municipal police training council created
10 under article thirty-five of the executive law, attesting to [~~his~~] such
11 person's satisfactory completion of an approved municipal police basic
12 training program or a certificate provided pursuant to subdivision
13 three-b of section eight hundred forty-one of the executive law; and
14 every person who is appointed on a temporary basis or for a probationary
15 term or on other than a permanent basis as a police officer of any coun-
16 ty, city, town, village or police district shall forfeit [~~his~~] their
17 position as such unless [~~he~~] such person previously has satisfactorily
18 completed, or within the time prescribed by regulations promulgated by

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD04728-03-5

1 the governor pursuant to section eight hundred forty-two of the execu-
2 tive law, satisfactorily completes, a municipal police basic training
3 program for temporary or probationary police officers and is awarded a
4 certificate by such director attesting thereto or a certificate provided
5 pursuant to subdivision three-b of section eight hundred forty-one of
6 the executive law. An elected or appointed sheriff may apply for a
7 certificate provided pursuant to subdivision three-b of section eight
8 hundred forty-one of the executive law.

9 § 2. Section 840 of the executive law is amended by adding a new
10 subdivision 9 to read as follows:

11 9. The council, in consultation with the superintendent of state
12 police, shall promulgate rules and regulations with respect to:

13 (a) determining qualifications and credentials of persons previously
14 appointed to the New York state police force as a sworn member, which
15 may include successful completion of a basic training program at the
16 state police academy, that are substantially equivalent to an approved
17 municipal police basic training program under this article and which
18 shall satisfy the requirements of section two hundred nine-q of the
19 general municipal law, in lieu of the certificate awarded by the execu-
20 tive director of the municipal police training council attesting to
21 satisfactory completion of an approved municipal police basic training
22 program; and

23 (b) the form and manner in which a person may apply to receive a
24 certificate attesting that such person's qualifications and credentials
25 as a person previously appointed to the New York state police force as a
26 sworn member are substantially equivalent to satisfactory completion of
27 an approved municipal police basic training program.

28 § 3. Section 841 of the executive law is amended by adding a new
29 subdivision 3-b to read as follows:

30 3-b. Certify police officers who have qualifications and credentials
31 that the council has determined to be substantially equivalent to an
32 approved municipal police basic training program and issue certificates
33 to such police officers;

34 § 4. This act shall take effect immediately.